

FORM 4 — APPLICATION IN EXISTING PROCEEDINGS (FINAL)

Industrial Relations Act 2016, ss 527, 989; Industrial Relations (Tribunals) Rules 2011, r 8 and r 64G A Form 20 – Affidavit of Cory Lea Shepherd is filed in support. Placeholders in [brackets] to be completed before filing.

Application to: ☒ Queensland Industrial Relations Commission ☐ Industrial Court of Queensland
Matter No: WC / 2024 / 227 **Applicant:** Cory Lea Shepherd **v** **Respondent:** Workers' Compensation Regulator

1. Applicant's details

- Title: Mr
- Name of Applicant: **Cory Lea Shepherd**
- Contact person: (self-represented)
- Postal/Service address: 15 Edmond Street, Coomera QLD 4209
- Mobile: 0417 400 227
- Email: coryshepherd1@hotmail.com

2. Applicant's representative

Not applicable — the Applicant is self-represented.

3. Respondent

- Name: **Workers' Compensation Regulator**
- Contact person: Renee Matheson, Office of Industrial Relations (Appeals Unit)
- Address: Office of Industrial Relations, GPO Box 69, Brisbane QLD 4001
- Email: appeals@oir.qld.gov.au; renee.matheson@oir.qld.gov.au

4. Affected non-party

Metro South Hospital and Health Service ("MSH"), c/- Executive Director, Clinical Governance, Risk & Legal, Metro South Health. Represented by Ms Myla Ruttan, Metro South Legal Services.

5. Grounds of application and decision sought

1. The substantive proceeding is the Applicant's appeal under the *Workers' Compensation and Rehabilitation Act 2003* against the rejection of his claim for a psychiatric injury. The matter in issue is the s 32(5)(a) "reasonable management action" defence, as pleaded in the Amended Statement of Facts and Contentions filed 7 April 2026 ("the Amended 9A").
1. On 22 April 2026 the Industrial Registry sealed the Applicant's Notice of Non-Party Disclosure (Form 29) ("the Notice"), served on MSH as the affected non-party. By letter dated 5 June 2026 (ref K-LM26/729), signed by the Chief Executive, MSH objected to production of part of the Notice.
1. This Application is made under rule 64G for the Commission to decide MSH's objection. It is the corrected re-filing, in the approved form, of the application the Applicant made on 12 June 2026 (within the seven-day period under rule 64G(1)), which the Registry declined to accept on format grounds on 15 June 2026.
1. **Decision sought** — the Applicant seeks the orders in the attached Schedule of Grounds and Draft Order. In summary:
 - the objection to Items 1, 2, 3(a), 3(b), 8, 9, 10 and 19 of the Notice (as narrowed in Schedule A) be overruled, and MSH produce those documents by native electronic export of the records returned by the server-side filters described in the Notice — no inbox review required;
 - MSH, by its Chief Executive or a delegated Director, file a single verification affidavit within seven (7) business days which, for each Item, (i) confirms on oath the export/search was undertaken, identifying the custodian, system, date-range and method, (ii) produces the records, or (iii) states on oath that the document does not exist;
 - a non-publication order under s 580 of the *Industrial Relations Act 2016* over the Applicant's medical certificates, the emergency-code data (Exhibit CS-8), and any patient-identifying information;
 - costs reserved.
1. The grounds, the item-by-item relevance, and the response to MSH's objections are set out in the attached **Schedule of Grounds** and proved by the **Affidavit of Cory Lea Shepherd** (Form 20) filed in support.

Attached: Schedule of Grounds (incl. Schedule A); Draft Order. **Filed in support:** Form 20 – Affidavit of Cory Lea Shepherd, with Form 21 Certificates of Exhibit CS-1 to CS-9.

6. Signature of Applicant

Signature: _____ Name: Cory Lea Shepherd Date: [date]

SCHEDULE OF GROUNDS AND SCHEDULE A

Attached to and forming part of the Form 4 — Application in Existing Proceedings, WC/2024/227

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION — *Workers' Compensation and Rehabilitation Act 2003 (Qld)* — Matter No: WC/2024/227 **BETWEEN:** CORY LEA SHEPHERD (Appellant/Applicant) **and** WORKERS' COMPENSATION REGULATOR (Respondent) — **AFFECTED NON-PARTY:** Metro South Hospital and Health Service ("MSH")

This Schedule supports the Form 4 Application made under r 64G of the *Industrial Relations (Tribunals) Rules 2011*, and is supported by the Affidavit of Cory Lea Shepherd (Form 20). The orders sought are in the Draft Order filed with the Application.

PART A — APPLICANT

Applicant: Cory Lea Shepherd, Appellant (Self-Represented). Supported by the Affidavit of Cory Lea Shepherd affirmed [date] ("the Affidavit"), and made in respect of the Notice of Non-Party Disclosure (Form 29) sealed by the Industrial Registry on 22 April 2026 ("the Form 29"), served on MSH as the 2nd and 3rd Affected Parties.

PART B — DISPOSITION SOUGHT

The Appellant respectfully applies, pursuant to r 64G, for the objection of MSH to be decided as follows (precise terms in the Draft Order):

(a) The objection to Items 1, 2, 3(a), 3(b), 8, 9, 10 and 19 (as narrowed in Schedule A) is overruled, and MSH is ordered to produce those documents by native electronic export of the messages and records returned by the server-side filters described in the Form 29 (identified custodians, identified date-ranges and identified phrase-families) — no inbox review, reading or relevance-assessment of any email being sought or required.

(b) **Verification affidavit (produce-or-swear).** MSH is ordered, by its Chief Executive or a delegated

Director, to file and serve a single affidavit within seven (7) business days which, for each Item the subject of the Form 29: (i) confirms on oath that the server-side export or search was undertaken, identifying the custodian, system, date-range and method applied; (ii) produces the records returned; and (iii) where the search returns no record, states on oath that the document does not exist.

(c) To the extent any extension is required, the time for production at (a) is fixed at a date certain and not contingent upon the supply of any pleading to a non-party.

(d) **Privacy safeguard.** If any question of privacy or confidentiality is raised, the documents be produced to the Commission for its inspection in the first instance, with access to the parties as the Commission directs and subject to any order under s 580 of the *Industrial Relations Act 2016*.

(e) **Confidentiality of sensitive material (s 580).** A non-publication order under s 580 in respect of: (i) the Appellant's medical certificates and any health information; (ii) the monthly-statistics exhibit (CS-8), to the extent it records emergency-code data referable to clinical events; and (iii) any patient-identifying information in any material produced — not extending to the aggregate call and code figures stated in the Affidavit.

(f) Costs reserved.

(g) Such further or other orders as the Commission considers appropriate.

SCHEDULE A — DISPOSITION OF THE TWENTY ITEMS

The Appellant does not press the Form 29 in full. He has narrowed and disposed of the twenty Items as follows, each pressed Item anchored to the stressor pleaded in the Amended 9A.

Pressed (production sought):

Item	Document	Relevance anchor
1	SPOK emergency paging export, 17–18 March 2024 — Code Blue/MET activations and doctor-on-call paging events, with event timestamp, code type and response-acknowledgement timestamp (clinician/patient identifiers may be redacted)	Stressor 3 + 1(a) — objective record of which clinicians were paged and whether pages were received, across the admitted 7-hour-break shift pairing
2	Aggregate SPOK activation counts (monthly, by code type), Logan Switchboard, stressor period	Stressor 1(a)/3 — objective volume of emergency codes

Item	Document	Relevance anchor
		coordinated
3(a)	Complaints corpus — misrouted/wrong-team/paging-error messages to the Line Manager. MSH's letter states these complaints "are made directly to the Line Manager of Switch Board and managed solely via email" — i.e. a single identified custodian's mailbox	Stressor 1(a) — dereliction of clinical governance; delay to urgent pathology results
3(b)	Management discussion of those complaints — minutes, agendas, action registers	Stressor 1(a) — whether the conduct was addressed
8	Management system login records (Active Directory / Entra / Citrix)	Stressor 1(a) — "erratic physical presence"
9	Security-access swipe-card records for the Line Manager at the building and floor access points serving the Switchboard area	Stressor 1(a) — the Line Manager's on-site presence (entry/exit times), not shown in login data
10	Targeted manager email export by server-side filter — (a) full corpus of messages from the Line Manager to the Logan Hospital Switchboard group distribution list; (b) the "effective immediately" sub-set; (c) the operational-directive sub-set; (d) Manager-to-Director correspondence concerning the Appellant	Stressor 1(a), (f) — unilateral directives without consultation; reprisal
19	Union-delegate correspondence — from the Appellant's 18 May 2024 request to Together (Ms Heather Hayes) to the injury date, 18 June 2024 ; the union's forward of that request to MSH and MSH's internal handling/response	Stressor 1(g) — MSH received the delegate request and did not act on it through to injury onset; QH-POL-248 (Form 24, Paras 17–18)

Produce-or-swear (Items 1 and 2 — SPOK). The Appellant presses Items 1 and 2 on the footing that the SPOK records exist and should be produced. Were MSH to assert otherwise, the verification affidavit at Part B(b) requires it to state on oath that a hospital does not retain the paging logs of its emergency codes — a statement of obvious significance to the s 32(5)(a) inquiry.

Verified non-existent (nil-result discharge sought) — Items 3(c), 4, 5, 7, 14, 20. Several are

probative as sworn negatives: Item 4 (the fatigue risk-assessment record for the 17–18 March 2024 pairing) and Item 5 (no FRMS training/competency for the Line Manager or Director) each go directly to Stressor 3. As to Item 4, MSH's letter answers only the *training* question (Item 5); whether the *risk-assessment record* exists is to be tested on oath under Part B(b), the assessment being required independently of any training threshold (see Part C2, para 6).

Withdrawn — Items 12 (balance), 17, 18.

Correction to Item 19 (union date and scope). Item 19 of the Form 29 anchored the union-delegate matter to a text message of **5 March 2024** and a date range commencing **1 March 2024**. That was an error. The disclosure the Appellant presses is confined to the period from his request to the Together union (Ms Heather Hayes) on **18 May 2024** to the date of injury onset, **18 June 2024** — capturing the union's forward of that request to MSH and MSH's handling (or non-handling) of it up to the injury. The earlier expression of interest (April 2023) and the 13-month suppression are pleaded and admitted (Form 24, Para 18) and do not require disclosure. This narrows Item 19; it does not expand it. MSH's objection that Item 19 would require searching the emails of its ~20,006 staff mischaracterises the Item: it was always confined to messages received by identified custodians (the Line Manager, the Director, the Logan Hospital health-team mailbox and HR) — not a search of all staff. The narrowed scope is confined to those custodians — the very limitation MSH itself proposed in its letter of 5 June 2026.

PART C — GROUNDS

1. **The matter in issue.** The Form 29 is directly relevant to the matter in issue — the s 32(5)(a) "reasonable management action" defence — as articulated in the Amended 9A. The Continuation Schedule to the Form 29 states that matter in issue and ties each Item, by a Relevance Anchor Table, to specified stressors pleaded in the Amended 9A and to admitted facts in the Respondent's Form 24.
1. **The health dimension.** The documents are not collateral to a private dispute; they go to whether the patient-safety and clinical-governance functions of the Switchboard were compromised. The Switchboard is the hospital's communications hub — where emergency codes are activated and urgent pathology results relayed doctor-to-doctor. The misrouted-call corpus (Item 3(a)), the manager's presence records (Items 8–9), and the directive corpus (Item 10) bear directly on whether time-critical clinical and emergency communications were delayed or misdirected. The Commission's evaluation of the s 32(5)(a) defence is, in this matter, inseparable from the patient-safety reality the records will reveal — a reality presently visible only from within MSH's own systems.
1. **Possession and control.** Each pressed Item is recorded in documents within MSH's exclusive

possession or control — its email system, its Active Directory / Entra / Citrix identity-management environment, its Security Access swipe-card system, its meeting and governance records, and its roster and HR systems. The Appellant, as the Switchboard operator, cannot produce them.

1. **No other reasonably simple, inexpensive way (r 64B).** The probative content is the documents' completeness — the scale, frequency and pattern of the conduct pleaded. The Appellant can produce individual examples (annexed to the Affidavit) but cannot export the complete corpus. There is no other reasonably simple, inexpensive way to prove what the documents show, save by bulk server-side export from MSH's systems, achievable at minimal cost and requiring no inbox review.
1. **The period is the course of conduct.** Because the injury developed cumulatively, the matter the documents go to is the volume and frequency of conduct across the pleaded period. The Appellant presses no period earlier or broader than the Form 29 itself — for the email-based Items, the date range stated in the Notice and quoted by MSH is 1 December 2023 to 30 June 2024. The Appellant seeks neither production beyond the course of conduct, nor a window so narrow that it samples rather than shows it. The full corpus of directives from the Line Manager to the Switchboard across that period is the direct and only measure of how much of the conduct the role endured (Stressor 1(a); and see the global evaluation of a composite course in *Delaney v Q-COMP* [2005] QIC 11; 178 QGIG 197).
1. **The documents exist.** The objection cannot rest on non-existence. MSH has itself produced documents responsive to Items 6, 11, 12, 13, 15 and 16 — including the myHR audit trail for leave record 15480560 (Item 11) — which establishes that the classes of record sought are real and retrievable from MSH's systems. The Respondent separately disclosed that same leave record on 11 June 2026, having obtained it from within MSH's systems through conferencing and without itself issuing a Form 29 (Admitted Fact: Form 24, Para 25). The Appellant has further annexed individual examples — including the Line Manager's email of 9 May 2024 and the union correspondence of 18–20 May 2024 — which demonstrate, on their face, that the classes of document sought are real.
1. **The application is not oppressive — it seeks an export, not a review.** The Appellant does not seek the review, reading or relevance-assessment of any email by MSH. He seeks only the native electronic export of the messages and records returned by a server-side filter applied to the identified custodians, identified date-ranges and identified phrase-families set out in the Form 29. The filter is self-executing and requires no inbox review. Each Item is bounded at the system level; the relief is the antithesis of a general search; and it is offered subject to nil-result discharge. Should MSH assert legal professional privilege over any specific record returned by

the filter, it may do so item-by-item, which is not a basis for resisting the export itself. If any question of privacy or confidentiality is raised, the Appellant consents to the export being produced to the Commission for its inspection in the first instance, with access as the Commission directs.

1. **The verification affidavit is the proportionate course.** Framed as produce-or-swear, the order leaves MSH a single, bounded step: produce, or verify non-existence on oath after a defined search. Either course resolves the objection without an item-by-item production dispute.
1. **Evidentiary context.** The Respondent itself obtained the Appellant's primary medical records without issuing a Form 29 (r 64C) (Admitted Fact: Form 24, Para 25). The process MSH now resists is the process the Appellant has scrupulously followed and the Respondent did not.

PART C2 — MSH'S OBJECTIONS ANSWERED (letter of 5 June 2026, K-LM26/729, signed by the Chief Executive)

MSH's objections reduce to three refrains, each of which the Notice already answers — and the letter itself supplies several of the answers the disclosure was designed to obtain.

1. *"We have not received the Form 9A, so we cannot assess relevance."* The Notice does not depend on supply of the parties' pleadings to a non-party. The Continuation Schedule states the matter in issue and ties each Item, by a Relevance Anchor Table, to a specified Stressor and an admitted Form 24 fact on its face (r 64C). The absence of the Form 9A in MSH's hands is not a ground under r 64E(4).
1. *"Compliance would require eHealth to review and search individual staff email accounts" (Items 3(a), 8, 10).* It would not. The Appellant seeks a server-side export — a self-executing filter bounded by identified custodian, date-range and phrase-family — and expressly disclaims any inbox review. The "expense and inconvenience" objection rests on an incorrect characterisation of the request as a manual account-by-account search. As to Item 3(a) in particular, MSH's own letter defeats the premise: it states that complaints about Switchboard operational errors "are made directly to the Line Manager of Switch Board and managed solely via email." On MSH's own account the records sit in a single identified mailbox (the Line Manager's), so the export is precisely targeted — not the hospital-wide trawl of "~20,006 staff" the objection invokes.
1. *"The matter in issue relates only to the consecutive shifts of 17–18 March 2024."* It does not. The 7-hour break (Stressor 3) is one of three pleaded stressors; Stressor 1(a) pleads a course of conduct across 2023–2024. Confining disclosure to two days would sample the conduct, not

show it (*Delaney v Q-COMP* [2005] QIC 11).

1. *"Item 19 would require searching the emails of ~20,006 staff."* It would not. Item 19 is confined to identified custodians — the Line Manager, the Director, the Logan Hospital health-team mailbox and HR — and is narrowed to **18 May – 18 June 2024** (Schedule A): the very limitation MSH itself proposed.
1. *"The Switchboard office does not have its own access-swipe access" (Item 9).* That answers a question not asked. Item 9 does not seek a dedicated reader on the Switchboard office door; it seeks the Line Manager's entry and exit records at the building and floor swipe-card access points that serve the collocated area — records that exist in MSH's Security Access system irrespective of whether the office itself has a dedicated reader, and that go to the Line Manager's "erratic physical presence" (Stressor 1(a)).
1. *FRMS — Items 4 and 5 answer different requests.* MSH objects to both on the footing that "Fatigue Risk Management System training only applies to health practitioners and clinical assistants." That answers Item 5 (training and competency records). It does not answer Item 4, which seeks the **fatigue risk-assessment record** for the pleaded shift pairing — a record the fatigue risk-management framework requires regardless of whether the staff are clinical and regardless of any mandatory-training threshold. MSH has conflated the training (Item 5) with the risk assessment (Item 4); the non-existence asserted for Item 4 should be tested on oath under Part B(b).
1. **The letter supplies the answers, under the Chief Executive's hand.** In responding, MSH has stated: (a) *No remedial change* — "there have been no 'consequential' changes to operating procedures over the period requested" (Item 3(c)); (b) *No fatigue framework at the time, and a restructure* — fatigue risk management at the Switchboard "occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard" (Item 5); (c) *Emergency-code logs not retained* — the SPOK records "do not exist... records predating [the system] upgrade were not retained," while "a spreadsheet of recorded MET calls is available for the period 17–18 March 2024" (Items 1–2). These are not reasons to refuse production; they are matters directly relevant to the s 32(5)(a) inquiry.
1. **The verification affidavit should formalise these statements.** Where MSH states a record does not exist or cannot be produced (Items 1–2, 3(c), 4, 5, 7, 14, 20), the order at Part B(b) requires that to be stated on oath by the Chief Executive or a delegated Director, with the search identified. (As to Item 20, MSH states PID 24-ESU-1130 "commenced in November 2024"; the underlying complaint was lodged 13 May 2024 (Form 24, Para 20). The verification can clarify whether records of the operational/HR response to the disclosures of that period exist, irrespective of the internal reference, and whether such records were included in MSH's earlier

production.)

PART D — MATERIAL RELIED UPON

- The Affidavit of Cory Lea Shepherd affirmed [date], and exhibits CS-1 to CS-9 (incl. CS-9 — MSH's letter of 5 June 2026).
- The Form 29 sealed 22 April 2026 and its Continuation Schedule.
- The Amended 9A filed 7 April 2026; the Respondent's Form 24.

FILED BY: Cory Lea Shepherd, Appellant (Self-Represented) — **DATE:** [date]